

25STCV22993 25STCV22993

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-21

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Case Number: 25STCV22993 Hearing Date: September 21, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

21, 2026

CASE NAME: Tomas

Camilo Micheo v. Los Angeles Unified School District, et al.

CASE NO.: 25STCV22993

DEMURRER

TO COMPLAINT

MOVING PARTY: Defendants

Los Angeles Unified School District and Bennett Quevado

RESPONDING PARTY(S): Plaintiff Tomas Camilo Micheo

REQUESTED RELIEF:

1. Demurrer

to the entire complaint as time-barred for failing to comply with the
Government Tort Claims Act;

2. Demurrer

to the first, fourth, fifth, and sixth causes of action for failing to state sufficient facts to constitute a cause of action.

TENTATIVE RULING:

1. Demurrer

to the entire complaint is SUSTAINED without leave to amend.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On August 4, 2025, Plaintiff Tomas Camilo Micheo, by and through his Guardian ad Litem Tomas Micheo (Plaintiff) filed a complaint against Defendants Los Angeles Unified School District (LAUSD) and Bennett Quevado (Quevado) (sometimes collectively Defendants) with causes of action for: (1) battery; (2) negligence; (3) negligent supervision; (4) violation of Civ. Code § 51; (5) intentional infliction of emotional distress; and (6) abuse of process.

According to the complaint, Plaintiff was subjected to physical restraint, intimidation, harassment, and unwarranted disciplinary actions by Defendants when Plaintiff attempted to use the restroom. Plaintiff alleges that Quevado restrained and battered him but Plaintiff was suspended and charged with battery instead. Plaintiff also alleges a series of continued harassment.

On July 24, 2026, Defendants filed the instant demurrer. On September 8, 2026, Plaintiff filed an opposition. On September 14, 2026, Defendants filed a reply.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). ¿The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)¿

Here, the parties met and conferred telephonically on June 26, 2026 and July 21, 2026. (Declaration of George Tourkow ¶¶ 6, 8.) This requirement is therefore met.

Demurrer –
Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn (2007) 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS Defendants' request for judicial notice of Exhibit A (Plaintiff's government tort claim) and Exhibit B (LAUSD's written notice of rejection). (Evid. Code § 452(c), (h).)

Demurrer

Entire Complaint –
Time-Barred & Compliance with Tort Claims Act

Defendants contend the complaint is time-barred pursuant to

Gov. Code § 945.6(a)(1) because Plaintiff filed suit more than six months after LAUSD sent a valid written claim rejection. They also contend Plaintiff failed to allege compliance with the Tort Claims Act.

Plaintiff argues this is a fact-heavy question since Plaintiff's counsel and LAUSD adjusters exchanged emails whereby LAUSD knew Plaintiff's counsel's address was changing and nonetheless sent the rejection to the prior address.

Defendants reply that the judicially noticeable documents establish receipt and rejection of Plaintiff's claim, Plaintiff's arguments are outside the four corners of the complaint, and there are no due process violations.

Gov. Code § 910 requires, among other things, the name and post office address of the claimant and the post office address to which the person presenting the claim desires notices to be sent. (Gov. Code § 910(a)-(b).)

As a threshold matter, neither party addressed Gov. Code § 912.4. That section required LAUSD to act on the claim "within 45 days after the claim has been presented." (Gov. Code § 912.4(a); *Cavey v. Tualla* (2021) 69 Cal.App.5th 310, 324, 329 (*Cavey*).) "If the board fails or refuses to act on a claim within the time prescribed by this section, the claim shall be deemed to have been rejected by the board on the last day of the period within which the board was required to act upon the claim." (Gov. Code § 912.4(c).)

Here, the claim was signed on August 21, 2023, stamped by LAUSD-Board Secretariat on August 24, 2023, and marked Received by RMIS on August 28, 2023. (RJN, Exhibit A.) 45 days from these dates were October 5, 2023, October 8, 2023, and October 12, 2023. The claim was therefore deemed rejected by no later than October 12, 2023. (Gov. Code § 912.4(c).) However, LAUSD provided written notice pursuant to Gov. Code § 913 on January 5, 2024. (RJN, Exhibit B.)

Gov. Code § 913 requires written notice of rejection of presented claims. (Gov. Code § 913(a).) The rejection must include a warning that includes reference to the six month limitations period. (*Id.* at subd. (b).) Additionally, Gov. Code § 915.4 requires personal delivery or mailing the rejection notice to the person presenting the claim or making the application. (Gov. Code § 915.4(a)(1)-(2).) If the rejection is mailed, it can be sent to an address "to

which the person presenting the claim or making the application desires notices to be sent” (Ibid.) In fact, LAUSD did not have discretion to mail it to an address aside from the one articulated in the claim form. (See Cavey, supra, 60 Cal.App.5th at p. 345-346.)

In Cavey, the Court of Appeal concluded that the notice of claim rejection was defective. There, the entity mailed the rejection to the plaintiff’s counsel’s mailing address and not to the plaintiff’s post office box included on the claim form. (Cavey, supra, 69 Cal.App.5th at p. 345.) The Court reasoned that this did not comply with “the unambiguous statutory requirement” because it “was not mailed to the address specified” in Gov. Code § 915.4(a)(2). (Ibid.)

So, too, here. It is undisputed that Plaintiff included counsel’s Beverly Hills address on the claim form. (RJN, Exhibit A; Opp. 8:12-23.[1])

This is the same address included on the claim form rejection. (RJN, Exhibit B; Opp. 8:12-23.) Thus, LAUSD complied with the “unambiguous statutory requirement” to mail the rejection to the address included on the claim form. (Cavey, supra, 69 Cal.App.5th at p. 345.)

What is more, “a claimant is required to comply with the six-month statute of limitations associated with government tort claims upon proof that the notice of rejection was served even if it was not actually received by the claimant.” (Him v. City and County of San Francisco (2005) 113 Cal.App.4th 437, 445.) Because of the statutory requirement for the entity to act on the claim within 45 days, “following a reasonable time after the expiration of the 45 days, a claimant should be aware that the claim has been denied and the statutory notice of that denial has not been provided.” (Ibid.)

Plaintiff filed this action on August 4, 2025 – well after six months from the October 2023 deemed rejected dates or the January 5, 2024 written notice of rejection.

Accordingly, the court SUSTAINS the demurrer to the entire complaint as time-barred.

Leave to Amend

Leave to amend should be liberally granted if there is a reasonable possibility an amendment could cure the defect.¿ (County of Santa Clara v. Superior Court (2022) 77 Cal.App.5th 1018,1035.)¿ The Plaintiff has the burden of demonstrating that leave to amend should be granted, and that the defects can be cured by amendment. ("Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349).

Plaintiff requests leave to amend to add facts concerning LAUSD's adjuster and promises not to send mailings until receiving counsel's new address. (Opp. 18:4-8.) However, these communications would not save the complaint because the communications occurred after the 45 day period for LAUSD to act on the claim already expired. The court does not see how this can be reasonably cured.[2]

Accordingly, leave to amend is DENIED.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer
to the entire complaint is SUSTAINED without leave to amend.

Pursuant to CCP § 581d, this written order of dismissal constitutes a judgment and shall be effective for all purposes. The Clerk shall note this judgment in the register of actions in this case.¿

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 21, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

The court rejects Plaintiff's arguments that considering the dates and addresses included on the claim form and the notice of rejection exceed the scope of permissible judicial notice. Notably, Plaintiff does not dispute these facts. (Opp. 8:12-23.) Instead, Plaintiff wishes to add additional facts, absent from the complaint or these documents, for the court to consider.

[2]

The court's denial of leave to amend is further supported by Plaintiff's own alternative theory under Government Code section 945.6(a)(2). As discussed above, the Complaint alleges that the asserted continuing conduct ended with Plaintiff's middle-school graduation in 2023. Although the Complaint does not allege the precise date of graduation, the allegations permit no reasonable inference that the asserted conduct continued until August 4, 2023. Plaintiff has identified no additional conduct occurring within two years of filing. Amendment would therefore be futile even under Plaintiff's proposed alternative limitations period.